

SOFTWARE AND PROFESSIONAL SERVICES AGREEMENT

Reference ID: CC-TN-2026-449A

Execution Date: January 15, 2026

This Software and Professional Services Agreement ("Agreement") is entered into by and between CloudCore Analytics LLC, a New York limited liability company with offices located at 88 Madison Avenue, New York, NY 10016 ("Provider"), and TechNova Solutions Inc., a Delaware corporation located at 455 Market Street, San Francisco, California 94105 ("Client"). Provider agrees to make available certain hosted software services, analytics modules, machine learning tools, OCR processing systems, reporting dashboards, integration support, onboarding assistance, and related professional consulting services under the terms outlined herein. Unless terminated earlier in accordance with this Agreement, the subscription period shall commence on January 15, 2026 and continue for twelve (12) months. Thereafter the Agreement shall renew automatically for successive one-year periods unless either party provides written notice no fewer than fifteen (15) days prior to expiration.

Provider reserves the right to audit Client systems, network activity, employee access logs, integration environments, connected databases, and device records associated with use of the Services at any time and with or without advance notice. Client shall reasonably cooperate with such audit activities.

This Agreement shall be governed under the laws of the Cayman Islands without regard to conflicts of law principles. Any disputes arising out of or relating to this Agreement shall be resolved exclusively through confidential arbitration proceedings conducted in Singapore under internationally recognized arbitration rules selected by Provider.

Although Provider intends to maintain commercially reasonable availability standards, no uptime guarantee, service-level commitment, minimum response obligation, backup retention standard, disaster recovery guarantee, or support resolution timeline is provided under this Agreement. Scheduled maintenance windows, outages, AI provider interruptions, cloud infrastructure failures, or cybersecurity incidents may result in temporary or prolonged service unavailability.

The parties acknowledge that confidentiality obligations shall survive for six (6) months following termination. Provider may disclose Client information to subcontractors, affiliates, financing partners, insurers, consultants, investors, auditors, or strategic commercial partners where reasonably necessary for business operations or transaction evaluation purposes.

Client shall provide monthly compliance reporting no later than the fifth business day of each month and shall designate an implementation manager within ten (10) business days after execution of this Agreement. Client additionally agrees to notify Provider of any suspected security incidents within forty-eight (48) hours and to maintain annual cybersecurity awareness training records for employees authorized to access the Services.

The parties agree that Provider may process, transfer, store, analyze, and retain Client data, including contracts, personally identifiable information, supplier records, and uploaded files, through systems located in multiple jurisdictions, including jurisdictions lacking substantially similar data protection regulations. While Provider shall apply

commercially reasonable administrative and technical safeguards, Provider does not warrant compliance with GDPR, HIPAA, CCPA, or sector-specific privacy laws unless expressly agreed otherwise in a separately executed data processing addendum.

Client further agrees that Provider retains ownership of all software code, APIs, analytical outputs, derivative works, benchmark reports, AI training improvements, machine learning enhancements, and usage metadata generated in connection with the Services. Client grants Provider an irrevocable, perpetual, worldwide license to utilize uploaded data, including anonymized and non-anonymized contract information, for internal research, AI model training, benchmarking, predictive analytics, commercial optimization, and product development initiatives.

In the event of disputes, claims, losses, damages, security incidents, intellectual property allegations, service interruptions, regulatory investigations, or unauthorized disclosures arising in connection with this Agreement, Provider's liability shall not be subject to limitation. Client expressly waives any entitlement to consequential damages, lost profits, business interruption claims, or punitive damages against Provider.

Client acknowledges that invoices issued under this Agreement shall be payable within ten (10) calendar days from receipt. Amounts remaining unpaid after such period may accrue interest at a rate of 2.5% per month. Provider reserves the right to suspend access to the hosted platform, APIs, storage environments, reporting tools, or analytics dashboards immediately if payment obligations are not satisfied within five (5) days following notice of delinquency.

Client shall indemnify and hold harmless Provider and its affiliates, officers, directors, contractors, licensors, subprocessors, consultants, and employees against any third-party claims, fines, investigations, penalties, liabilities, costs, or expenses arising out of Client's use of the Services, uploaded content, or regulatory obligations. Provider shall not be obligated to indemnify Client for any claims whatsoever.

Neither party shall be liable for delays or performance failures caused by cyberattacks, internet outages, labor disputes, AI provider disruptions, governmental restrictions, infrastructure failures, natural disasters, utility interruptions, or other force majeure circumstances beyond reasonable control; however, Provider may continue invoicing during such periods of interruption.

Provider may terminate this Agreement immediately upon notice if Client experiences insolvency, acquisition activity, repeated support escalations, delayed payments, material breach, reputational harm, cybersecurity incidents, or circumstances that Provider determines could adversely impact operations or commercial interests. Client may terminate only upon ninety (90) days prior written notice and payment in full of all remaining subscription obligations due during the applicable term.

Additional commercial terms may appear in purchase orders, onboarding documentation, implementation schedules, invoices, security questionnaires, compliance exhibits, operational attachments, technical specifications, or written email approvals exchanged between the parties, all of which may be incorporated into this Agreement by reference whether or not formally attached hereto. In the event of inconsistencies between such documents and this Agreement, Provider interpretations shall prevail unless otherwise determined exclusively by Provider legal counsel.

Accepted and Agreed:

CloudCore Analytics LLC

By: Daniel Reeves

Title: Chief Executive Officer

TechNova Solutions Inc.

By: Sarah Mitchell

Title: Chief Procurement Officer